

CHAPTER 30

An Act to provide for the establishment of a Department of Technical Co-operation under the charge of a Minister of the Crown. [22nd June, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Establishment
and functions
of Depart-
ment.

1.—(1) For the purpose of co-ordinating, promoting and carrying out arrangements for furnishing countries outside the United Kingdom with technical assistance, including in particular assistance in the fields of economic development, administration and social services, there shall be established a separate department under the charge of a Minister of the Crown.

(2) The Minister and his department shall be known respectively as the Secretary for Technical Co-operation and the Department of Technical Co-operation.

(3) The powers exercisable by Order in Council under section one of the Ministers of the Crown (Transfer of Functions) Act, 1946 (which enables Her Majesty to transfer functions from one Minister of the Crown to another) shall include power to direct that functions of any Minister of the Crown within the meaning of that Act shall be exercisable by the Secretary for Technical Co-operation concurrently with that Minister, or shall cease to be so exercisable; and any reference in that Act to functions transferred by an Order in Council thereunder shall be construed accordingly.

Oath of
allegiance
and official
oath.

2. The Secretary for Technical Co-operation shall take the oath of allegiance and the official oath; and the Promissory Oaths Act, 1868, shall have effect as if his name were included in the First Part of the Schedule to that Act.

Officers,
remuneration
and expenses.

3.—(1) The Secretary for Technical Co-operation may appoint such officers and servants as he may with the consent of the Treasury determine.

(2) There shall be paid—

(a) to the Secretary for Technical Co-operation, an annual salary not exceeding three thousand seven hundred and fifty pounds;

(b) to any officers and servants appointed by him, such salaries or remuneration as the Treasury may determine; and for the purposes of section six of the Ministers of the Crown Act, 1937 (which makes provision against duplicate salaries) any salary payable under this Act to the Secretary for Technical Co-operation shall be deemed to be a salary payable under that Act.

(3) The salary of the Secretary for Technical Co-operation and his expenses (including any salaries or remuneration payable under paragraph (b) of the last foregoing subsection) shall be defrayed out of moneys provided by Parliament.

4.—(1) The Secretary for Technical Co-operation shall for all purposes be a corporation sole, and shall have an official seal, which shall be authenticated by his signature or by that of any person authorised by him to act in that behalf. Seal, style and acts of Minister.

(2) The seal of the Secretary for Technical Co-operation shall be officially and judicially noticed, and every document purporting to be an instrument made or issued by him and to be sealed with his seal authenticated in the manner provided by this section, or to be signed by any person authorised as aforesaid, shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

(3) A certificate signed by the Secretary for Technical Co-operation that any instrument purporting to be made or issued by him was so made or issued shall be conclusive evidence of that fact.

(4) The Documentary Evidence Act, 1868, shall apply to the Secretary for Technical Co-operation as if his name were included in the first column of the Schedule to that Act, and as if he or any person authorised by him to act on his behalf were mentioned in the second column of that Schedule, and as if the regulations referred to in that Act included any document issued by the Secretary for Technical Co-operation.

5. Section two of the House of Commons Disqualification Act, 1957 (which limits the numbers of persons being the holders of offices specified in the Second Schedule to that Act who may sit and vote in the House of Commons at any one time) shall have effect as if the office of Secretary for Technical Co-operation were included among the offices specified in Part II of that Schedule. Seat in House of Commons.

6. This Act may be cited as the Department of Technical Co-operation Act, 1961. Short title.

— — — — —
Table of Statutes referred to in this Act

Short Title	Session and Chapter
Documentary Evidence Act, 1868	31 & 32 Vict. c. 37.
Promissory Oaths Act, 1868	31 & 32 Vict. c. 72.
Ministers of the Crown Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 38.
Ministers of the Crown (Transfer of Functions) Act, 1946	9 & 10 Geo. 6. c. 31.
House of Commons Disqualification Act, 1957	5 & 6 Eliz. 2. c. 20.